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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

DENUVO GMBH, Plaintiff, v. VOICES38, an unknown individual or entity, and DOES 1-10, Defendants.	Case No. 4:26-cv-10423-HSG **PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE (DKT. NO. 24) RE *EX PARTE* MOTION FOR EXPEDITED DISCOVERY (DKT. NO. 15)** Judge: Haywood S. Gilliam, Jr.

Plaintiff Denuvo GmbH ("Denuvo") responds to the Court's Order Directing Plaintiff to E-File Proposed Order and Order to Show Cause (the "Order"). Dkt. No. 24. Denuvo concurrently herewith e-files the proposed order. Denuvo also attaches hereto revised subpoenas to Discord, Inc. ("Discord"), Reddit, Inc. ("Reddit"), and Valve Corporation ("Valve") as Exhibits A, B, and C. Denuvo accepts the Court's invitation to submit revised subpoenas that are narrowly tailored to identify Defendant. Denuvo respectfully submits that the revised subpoenas align with the narrowly tailored subpoena in *Alo, LLC v. Fang*, No. 25-cv-11126-PHK, 2026 WL 1725893, 2026

U.S. Dist. LEXIS 133181 (N.D. Cal. June 15, 2026). Below, Denuvo submits why each document request is targeted to identifying and serving Defendant voices38 ("Defendant"), complies with the Order, and aligns with *Alo*.

I. EACH REQUEST IS TARGETED TO IDENTIFYING AND SERVING DEFENDANT

Courts permit limited early discovery "to permit the plaintiff to learn the identifying facts necessary to permit service on the defendant." *Columbia Ins. Co. v. seescandy.com*, 185 F.R.D. 573, 577 (N.D. Cal. 1999). The plaintiff must provide "a statement of reasons justifying the specific discovery requested." *Id.* at 580.

A. The Revised Requests Follow the *Alo* Subpoena.

The Order identifies the subpoena in *Alo* as the model for Denuvo's requests. Dkt. No. 24 at 2. In *Alo*, Judge Kang granted leave to serve that subpoena, which sought "[a]ll DOCUMENTS RELATING TO the contact information for the ebay seller kyy_40," including "any identifying information such as . . . names, identification documents, email addresses, business or residential addresses." *Alo*, 2026 U.S. Dist. LEXIS 133181, at *17; *Alo*, ECF No. 16-2 at 16.

Denuvo's revised requests follow the same form. Each seeks all documents relating to the identity or contact information of one account that the Complaint attributes to Defendant, including names, identification documents, email addresses, and business or residential addresses. Exs. A-C. Exhibit A addresses the Discord user "voices38," User ID 1427416652684984397. Compl. ¶ 4. Exhibit B addresses the Reddit user "voices38." *Id.* ¶¶ 3, 64. Exhibit C contains a separate request for each of the seven Steam profiles listed in the Complaint. *Id.* ¶ 5.

The requests do not seek the contents of any message, post, or file, which federal law generally bars these providers from disclosing. 18 U.S.C. § 2702(a)(1). The requests seek records "pertaining to a subscriber," which a provider may disclose "to any person other than a governmental entity." *Id.* § 2702(c)(6). Measured against the *Alo* subpoena, Denuvo's requests differ in only three respects. They reach identity as well as contact information, and they add telephone numbers and Internet Protocol ("IP") addresses. Denuvo respectfully submits that these differences are permissible in light of the Order and *Alo*.

B. Each Difference Is Needed to Identify Defendant and Aligns with *Alo*.

1. Identity Information

In *Alo*, the plaintiff already had a name and a street address from the return label on the packages it bought. *Alo*, 2026 U.S. Dist. LEXIS 133181, at *2-3. In granting leave, Judge Kang described the information sought as an email address and a residential or business address. *Id.* at *15. Denuvo has only a pseudonym. Compl. ¶ 21. Denuvo therefore needs records showing who holds each account, including any name or identification document on file, to name Defendant and effect service. *See* Fed. R. Civ. P. 4(e), (f).

2. Telephone Numbers

Ebates struck telephone numbers because the plaintiff did not explain why it needed them. *Ebates, Inc. v. Does*, No. 16-cv-01925-JST, 2016 U.S. Dist. LEXIS 59480, at *9 (N.D. Cal. May 3, 2016). Denuvo's reason is specific to Discord, which asks each new user to "provide a way of contacting you (such as an email address and/or phone number)." Discord Privacy Policy (eff. Sept. 29, 2025).[1] Discord may also require "a verified phone number." *Id.* A Discord account may therefore carry a telephone number and no email address. That number identifies a carrier and a subscriber of record, which may be the only route to a name and address.

3. IP Addresses

eBay requires every individual seller to provide a full name, an address, a date of birth, and a Social Security number. *Alo*, ECF No. 16-2 at 7. The platforms here require far less, and what they require is self-reported. Valve collects an "email address and country of residence" at registration. Steam Privacy Policy (rev. Feb. 14, 2025).[2] Discord requires a username, a password, a birthday, and a means of contact. Discord Privacy Policy, *supra*. Both platforms log IP addresses. Steam Privacy Policy, *supra* (stating that "our servers log your IP address"); Discord Privacy Policy, *supra* (collecting "information like your IP address"). Those addresses may be the only reliable path to Defendant.

[1] Available at https://discord.com/privacy (last visited Oct. 14, 2026).

[2] Available at https://store.steampowered.com/privacy_agreement/ (last visited Oct. 14, 2026).

Ebates permitted requests for IP address information at registration and during a defined period. *Ebates*, 2016 U.S. Dist. LEXIS 59480, at *8, *10. This Court has likewise authorized a subpoena to any provider "identified in response to a subpoena as a provider of Internet services to Defendant." *Strike 3 Holdings, LLC v. Doe*, No. 21-cv-03950-HSG, ECF No. 8 ¶ 3 (N.D. Cal. June 4, 2021).

C. Denuvo Concurrently Herewith Submits the Proposed Order.

Denuvo concurrently herewith e-files the proposed order and submits a Word version to HSG@cand.uscourts.gov.

II. CONCLUSION

Denuvo's revised requests follow the subpoena the Order identifies as the model, and each difference serves the identification and service of Defendant. Denuvo respectfully requests that the Court grant the *Ex Parte* Motion for Expedited Discovery and authorize service of the subpoenas attached as Exhibits A through C.

Dated: October 14, 2026

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